

19STCV19306 19STCV19306

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Case Number: 19STCV19306 Hearing Date: August 19, 2026 Dept: 400

MOTION

TO DISMISS

The Court tenders

the following tentative decision in the matter Guven Uzun, et al. v. Stewart

Baker Jefferson Powell, et al., Los Angeles County Superior Court case

number 19STCV19306, set for hearing on August 19, 2026. Stewart Baker Jefferson

Powell and Yacoubian & Powell, LLP (collectively, Defendants) move to dismiss the present action filed

by Guven Uzun, Infoneuro Group, Playa Advance Surgical Institute, LLC, and

Playa Advance Urgent Care, Inc. (collectively, Plaintiffs) with prejudice as to

all defendants. Defendants' motion is granted except the case is dismissed

without prejudice.

A. Legal Standard

"An action

shall be brought to trial within five years after the action is commenced

against the defendant." (Code Civ. Proc., § 583.310.) A party may move to

dismiss an action pursuant to this provision, and such dismissal is mandatory.

(Id., § 583.360.) Additionally, "[t]he court may in its discretion

dismiss an action for delay in prosecution pursuant to this article on its own

motion or on motion of the defendant if to do so appears to the court

appropriate under the circumstances of the case." (Id., § 583.410, subd.

(a).) A dismissal for delay in prosecution for failure to bring an action to

trial only lies where the action is not tried within two years of commencement.

(Id., § 583.420, subd. (a)(2)(B); Rules of Court, rule 3.1340(a).)

B. Discussion

Defendants move to

dismiss the present action on the basis that it was not brought to trial within five years of commencement. Such a dismissal is mandatory under section 583.360. The 5-year rule is tolled while prosecution of the action is stayed.

(Code Civ. Proc., § 583.340, subd. (b).) The stay must apply to the action as a whole and not include carve-outs for certain matters. (*Gaines v. Fidelity National Title Insurance Co.* (2016) 62 Cal.4th 1081, 1097 (*Gaines*).)

The five-year deadline may also be extended by written stipulation or oral agreement in open court. (Code Civ. Proc., § 583.330.) But the emergency rule adopted by the Judicial Council of California in response to the COVID-19 pandemic merely extended the deadline and did not toll the period. (*Ables v. A. Ghazale Brothers, Inc.* (2022) 74 Cal.App.5th 823, 828, fn. 5 (*Ables*).)

Specifically, "[n]otwithstanding any other law, including Code of Civil Procedure section 583.310, for all civil actions filed on or before April 6, 2020, the time in which to bring the action to trial is extended by six months for a total time of five years and six months." (*Id.* at p. 825.)

The relevant timeline

is as follows:

6/4/19 Complaint filed (5 years expires 6/4/24)

4/6/20 Covid emergency rule extends 6 months (5 years expires 12/4/24)

7/29/22 Court stays entire case

8/29/23 Stay lifted

(adds 13 months to prior deadline; 5 years now expires 1/4/26)

1/8/25 Trial continued to 11/3/25 per ex parte and stipulation (no change to 5 year deadline)

9/3/25 Trial continued to 4/20/26 based on P's unopposed ex parte application; (no change to 5 year deadline)

2/24/26 Stipulation to continue trial to

12/28/26 (stipulation to waive 5 years except no agreement if period already expired prior to 5/3/26)

Plaintiffs filed the present

action on June 4, 2019. At that time, the five-year rule was set to expire on June 4, 2024. The special COVID-19 emergency rule then extended this period by 6 months to December 4, 2024, as this case was filed “on or before April 6, 2020.” (Ables, *supra*, 74 Cal.App.5th at p. 828.) On July 29, 2022, the Court stayed the present case “in its entirety.” This properly tolled the deadline pursuant to Gaines. The stay was lifted by Court order on August 28, 2023, effective the next day. Thus, the five-year rule was tolled for an additional 13 months, extending it to January 4, 2026. The parties agreed to another trial continuance in the interim which did not exceed the 5-year period due to the COVID emergency rule. Importantly, Plaintiffs dispute this interpretation, seeming to argue that the COVID extension does not apply until after all tolling periods are considered. Under this interpretation, this continuance would have extended the five-year rule period further because trial was continued until after the five-year limit if the COVID-19 extension was ignored. But the Court does not adopt this interpretation. On January 8, 2025 the Court continued the trial date to November 3, 2025 (a date prior to the then-existing 5 year deadline of January 4, 2026). Then, on September 3, 2025, trial was again continued to April 20, 2026. Defendants’ counsel was present in Court for this continuance and did not file an opposition. But Defendants did not stipulate in writing to an extension of the five-year rule or orally agree to such in open court as reflected in the minute order from that proceeding. Thus, the five-year rule was not tolled pursuant to section 583.330. It expired in January 2026. Then, on February 24, 2026, the parties stipulated to a further trial continuance and agreed to extend the five-year deadline further, setting the current trial date of December 28, 2026. However, Defendants reserved their objection to Plaintiffs’ calculation of the five-year rule, stating that they did not waive or extend any five-year period that had already expired before May 3, 2026. Thus, Plaintiffs’ action has not been brought to trial within five years of commencement, even after taking all applicable tolling periods into consideration. This makes dismissal appropriate.

Plaintiffs argue for

relief as permitted in *Tresway Aero, Inc. v. Superior Court* (1971)

5 Cal.3d 431. There, the California Supreme Court held that trial courts are vested with discretion in applying the five-year rule, “exercised in accordance with the spirit of the law and with a view of subserving, rather than defeating, the ends of substantial justice.” (Id. at p. 437.) Indeed, a defendant may be estopped from seeking dismissal under the five-year rule. (Id.

at p. 438.) However, the Court does not exercise its discretion to deny Defendants' motion to dismiss in this instance. The first stipulation to continue trial did not set a trial date past the five-year rule after considering adjustments from the COVID-19 emergency extension. And in the most recent stipulation, Defendants' counsel agreed to an ostensible extension of the five-year rule based on Plaintiffs' interpretation of the COVID-19 extension, but they reserved their right to challenge that interpretation as they have here. The Court does not find that any justification exists to deny the present motion. Accordingly, Defendants' motion is granted.

Conclusion:

The Court grants Defendant's motion to dismiss the case without prejudice.